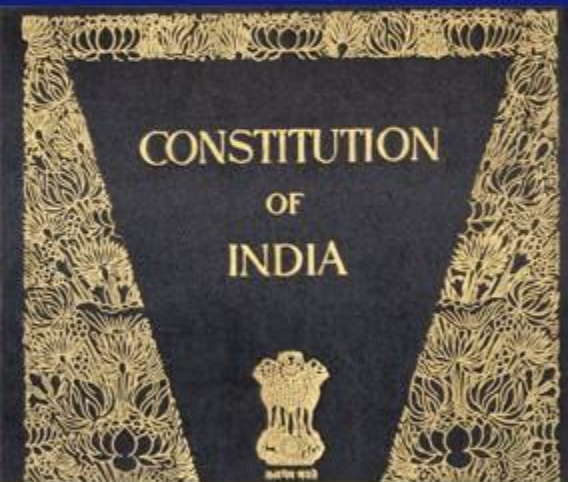


INDIAN POLITY



MODULE - 4

**GOVERNMENT OF INDIA
ACT OF 1858**

GOVERNMENT OF INDIA ACT, 1858



- 1** The 1858 Act marks the beginning of a new chapter in the constitutional history of India. This Act is known as **Act for the Good Government of India**.
- 2** It provided for the **liquidation of the East India Company** and transferred the powers of Government and territories and revenues to the British Government.

GOVERNMENT OF INDIA ACT, 1858

BACKGROUND OF THE ACT

- 1 The growing resentment against the Company's Rule reached its climax in India with the Mutiny of 1857.



- 2 The revolt of 1857 is popularly known as First War of Indian Independence gave a clear message to London that administration of India cannot be left in the hands of the Company.
- 3 Thus, the 1858 Act was introduced in the Parliament for the transfer of the power to the British Crown
- 4 This Act was dominated by the **Principle of Absolute Imperial Control.**

GOVERNMENT OF INDIA ACT, 1858

FEATURES OF THE ACT



*Lord Canning was the first
Viceroy of India*

- 1** The Act provided that India must be governed **directly through Crown** and it abolished the Company Rule.
- 2** The Act changed the designation of the Governor General of India to that of Viceroy of India. The **Viceroy was the direct representative of British Crown** in India.
- 3** It ended the **system of double Government** by abolishing the Board of Control and Court of Directors.

GOVERNMENT OF INDIA ACT, 1858

FEATURES OF THE ACT

- 4 It created a new office namely the **Secretary of State for India**, who was ultimately responsible to the British Parliament.
- 5 It established a **15-member Council of India** to assist the **Secretary of State**. This Council was an advisory body and the SoS was made the Chairman of the Council.
- 6 The SoS who was responsible to the British Parliament governed India through the Governor-General who was in turn assisted by the Executive Council (known together as Governor-General in Council).
- 6 The Act constituted the Secretary of State in Council as a body corporate, **capable of suing and being sued in India and in England**.

GOVERNMENT OF INDIA ACT, 1858

SECRETARY OF STATE



Lord Stanley was the first Secretary of State for India

- *The Office of Secretary of state was vested with complete authority and control over the Indian administration.*
- *This Secretary of State was to be a British MP and a member of the Prime Minister's cabinet.*
- *Thus, now, he was the political head of India.*
- *The SoS was the member of the British Cabinet and he was ultimately responsible to the British Parliament.*
- *Lord Stanley was the first Secretary of State for India*

GOVERNMENT OF INDIA ACT, 1858

MORE CLARITY ON VICEROY AND GOVERNOR GENERAL...

- *The difference between Viceroy and Governor-General lies in the fact that*
 1. *Viceroy was the direct representative of the Crown while the Governor-General was the representative of the British Government.*
 2. *The Viceroy dealt with the princely states of India, whose relationship was not with the British government, but directly with the monarch. And as a Governor General, he governed the British India provinces.*
- *A viceroy is a "vice-king" (roi is French for king). Queen Victoria and Queen Elizabeth II were female "kings," (not queens in the usual sense of wife of a king) and dominions held in the name of the king or queen (like Queen Victoria who was the Empress of India) would be ruled by Viceroys.*

GOVERNMENT OF INDIA ACT, 1858

ANALYSIS OF THE ACT

1 The Administration of the country was **rigidly centralized** through this act.

2 Though the territory was divided into provinces, the provincial Governments were mere agents of the Government of India.

4 There was **no separation of functions** and all the authority for the governance of India- civil and military, executive and legislative- was vested in Governor General-in-Council.

5 The entire machinery of administration was **bureaucratic and totally unconcerned about public opinion** in India.

GOVERNMENT OF INDIA ACT, 1858

ANALYSIS OF THE ACT

4 The control of the Secretary of the State over the administration was **absolute**. Subject to his ultimate responsibility to the British Parliament, he wheedled the Indian administration through Governor General as his agent and his was the last word whether in matters of policy or otherwise.

5 This Act brought about more formal than any substantial changes. The influence of the East India Company in fact had already substantially reduced through the various Charter Acts and they were more or less under the control of British Parliament and this Act just formalized this change.

UPSC PRELIMS 2006

Consider the following statements

- 1) The Charter Act 1853 abolished East India Company's monopoly of Indian trade.
- 2) Under the Government of India Act 1858, the British Parliament abolished the East India Company altogether and undertook the responsibility of ruling India directly.

Which of the above is / are correct?

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 & 2 | d) Neither 1 nor 2 |

Answer: B

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